HEADNOTE

> *"An application for leave to appeal pursuant to R. 157 RoP in conjunction with R. 221 RoP is inadmissible insofar as it concerns a rejection of the application for re-establishment of rights. According to R. 320.7 RoP, there shall be no right to appeal from an order rejecting an application for re-establishment of rights or from an order granting re-establishment of rights. It follows that a corresponding application for leave to appeal according to R. 157 RoP in conjunction with R. 221 RoP is inadmissible."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 2 548 648

Mill for comminuting of material

KEYWORDS
Inadmissibility of an application for leave to...

Rule 157 Appeal against the cost decision

SUMMARY
The Court of Appeal Luxembourg issued a procedural order concerning a mill for comminuting of material. The patent at issue relates to machinery designed for grinding and reducing material into smaller particles. According to the headnotes of the decision, applications for leave to appeal cannot proceed when they challenge orders rejecting re-establishment of rights applications. The procedural rules expressly prohibit any right to appeal from such rejection orders. Furthermore, this prohibition applies equally to orders granting re-establishment of rights. As a result, any corresponding leave to appeal application is inadmissible under these circumstances.